



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FACSIMILE

{{insurance2.insurer.name}}

Attn: {{insurance2.adjuster.name}}

{{insurance2.adjuster.address1line1}}, {{insurance2.adjuster.address1line2}}

{{insurance2.adjuster.address1city}}, {{insurance2.adjuster.address1state}}

{{insurance2.adjuster.address1zip}}

F: {{insurance2.adjuster.fax1}}

Re: Your Insured: {{insurance2.insured.name}}
Our Client(s): {{fullname}}, _____, and _____
Policy No.: {{insurance2.policynumber}}
Claim No.: {{insurance2.claimnumber}}
Date of Loss: {{intake.incidentDate|longDate}}

To Whom It May Concern:

Please be advised that this office has been retained to represent {{fullname}}, _____, and _____ with regards to the personal injuries and damages sustained as a result of a motor vehicle collision involving your insured's vehicle.

So as to expedite this claim, please provide our office with the following:

1. A **certified copy of all insurance policies**, including any umbrella policy(ies), of your insured so that we may determine whether this claim can be resolved within your policy limits. Please be aware that an insurer's failure to disclose policy limits during the prelitigation phase may serve as a basis for bad faith actions. See *Powell v. Prudential P&C Ins. Co.*, 584 So. 2d 12 (Fla. 1991), and *Boincourt v. Amex Assur. Co.*, 78 Cal. App. 4th 1390 (Cal. 2000) which are both persuasive authorities on the matter.
2. **Initial property damage estimate** and **photos** of your insured's vehicle.
3. **Please have your insured answer, notarize, and return the enclosed affidavit of insurance coverage.**
4. Kindly forward copies of any recorded oral and or written statements taken from our client with regards to the facts of this loss.

Please also notify this office as to your intentions with regards to {{fullname}}'s property damage claim. If no claim has been put forth with your office, please accept this letter as formal notification of the same. Furthermore, pursuant to NAC 686A.680, "where liability and damages are reasonably clear an insurer may not recommend that a third-party claimant make a claim under his or her own policies solely to avoid paying claims under the insurer's insurance contract or policy." **Pursuant to Dugan v. Gotsopoulos, 117 Nev. 285, 22 P.3d 203 (2001), if you do not resolve our client's property damage claim in a timely manner, we will assert a claim for loss of use for each day that our client is without a vehicle. The daily amount will be the value of a rental vehicle that is comparable to our client's vehicle. As such, it is advisable that you resolve our client's property damage claim promptly.**

Finally, please instruct your insured to preserve all evidence in your insured's possession, custody, or control related to this incident. This includes any photographs, and/or video/audio of the



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incident, parties, and/or the involved vehicles, text messages, statements of the parties, etc. Failure to preserve that evidence may result in sanctions against your insured. See, *Stubli v. Big D International Trucks, Inc.*, 810 P.2d 785, 107 Nev. 309 (1991).

Please confirm in writing your address and any other information to correspond with the adjuster.

Please note that, pursuant to Nevada Administrative Code 686A.665, you are to acknowledge the receipt of a claim notice within 20 working days after receipt of the claim. Please note that our preferred method of communication is email. You may address all correspondence to records@goldmedalinjurylaw.com. Should you have any further questions, comments or concerns regarding the contents of this letter, or should you require further information, please do not hesitate to contact our office.

Very Truly Yours,

Andrew Stipovac

{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}

AS/ [REDACTED]



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AFFIDAVIT OF INSURANCE COVERAGE

I, {{insurance2.insured.name}}, hereby swear under penalty of perjury, that the following assertions are true of my own personal knowledge:

1. I was involved in a motor vehicle accident with {{fullname}} on {{intake.incidentDate} | longDate}}.
2. I declare that I have made a diligent search and that, to the best of my knowledge:
 - This is a complete list of all insurance policies (umbrella, excess, or otherwise) providing coverage to this incident:

 - That at the time of incident I was not acting in the course or scope of any agency, employment, joint venture or joint enterprise; I was not acting on behalf of or doing any errand for anyone or any entity or corporation; I was not the alter ego of anyone or any entity or corporation involved in this incident or connected with this incident in anyway whatsoever.
3. I hereby affirm that I do not have sufficient personal assets to satisfy any significant judgment against me in excess of my policy limits with {{insurance2.insurer.name}}.
4. I understand that the other parties are expressly relying upon these representations as being the complete truth in deciding whether to settle.

Printed Name: {{insurance2.insured.name}}

Date: _____

STATE OF: _____)
COUNTY OF: _____) ss:

DATED _____.

Notary Public

AFFIDAVIT OF {{ insurance2.ownervehicle.name | capitalize }}



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NOW COMES, {{ insurance2.ownervehicle.name | capitalize }}, affiant herein, who after being duly sworn before the undersigned officer, who is duly authorized by law to administer oaths, gives this affidavit based on his personal knowledge that the following information set forth herein is true and correct:

1. I am over the age of eighteen years and possess the capacity to testify to the facts herein based on my personal knowledge.
2. On **{{intake.incidentDate| longDate}}** I was the owner of a **{{insurance2.colorofdefendantsvehicle}}** **{{insurance2.dyear}}** **{{insurance2.dmake}}** **{{insurance2.dmodel}}**. The vehicle was operated by **{{insurance2.deftdriver.name}}**, who was involved in a motor vehicle collision.
3. At the time of the motor vehicle collision, my vehicle was not acting in the course and scope of my employment.
4. At the time of the motor vehicle collision, my vehicle was covered under one motor vehicle insurance policy, **{{insurance2.insurer.name}}**, Policy Number **{{insurance2.policynumber}}**, which provided **{{insurance2.3ppolicylimits}}** in bodily injury liability insurance.
5. I have performed a diligent search for additional insurance coverage and I have concluded that I do not have, and did not have, any other insurance policy that would provide insurance coverage for any claimant involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
6. Furthermore, I am not covered by any other applicable insurance policy in the name of my spouse, my employer or any other resident relative that would provide insurance coverage for claimants involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
7. Further, I did not have an umbrella insurance policy that would provide insurance coverage for **{{fullname}}** or **his/her/their** **{{insurance2.colorofplaintiffsvehicle}}** **{{insurance2.yearofplaintiffsvehicle}}** **{{insurance2.makeofplaintiffsvehicle}}** **{{insurance2.modelofplaintiffsvehicle}}** or any claimant involved in **{{intake.incidentDate| longDate}}** motor vehicle collision in effect.
8. Furthermore, my homeowner's insurance policy did not and does not provide insurance coverage that would cover **{{fullname}}** nor any claimant involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
9. My net worth does not exceed \$[def net worth].
10. I have read this affidavit and it fully and accurately represents my insurance coverage for the **{{intake.incidentDate| longDate}}** motor vehicle collision and my net worth as of the date of this affidavit.
11. That aside from the foregoing insurance policy, I do not have other assets or resources available to compensate the parties injured in the foregoing accident.

{{insurance2.ownervehicle.name}}

State of: _____
County of: _____

Sworn to and subscribed before me this the _____ day of _____, 20____.

Notary Public in and for said County and State
My Commission Expires _____